



SPONSOR: Sen. Poore & Rep. Heffernan
Sens. Hoffner, Richardson; Reps. Gorman, Snyder-Hall

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 94

AN ACT TO AMEND TITLE 24 OF THE DELAWARE CODE RELATING TO RESPIRATORY CARE PRACTITIONERS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Title 24, Chapter 17 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating accordingly:

§ 1776 Respiratory care practitioners.

(a) As used in this subchapter:

(1) "Respiratory care" means the allied health profession, under the direction of a person certified to practice medicine, which is responsible for direct and indirect services in the treatment, management, diagnostic testing, control, and care of patients with deficiencies and abnormalities associated with the cardiopulmonary system. Respiratory care includes inhalation therapy and respiratory therapy.

(2) "Respiratory care practitioner" or "RCP" means an individual who practices respiratory care in accord with the requirements of this ~~subchapter~~, subchapter.

(b) A respiratory care practitioner works under the general supervision of a person certified to practice medicine, whether by direct observation and monitoring, by protocols approved by a person certified to practice medicine, or by orders written or verbally given by a person certified to practice medicine. A respiratory care practitioner may evaluate patients and make decisions within parameters defined by a person certified to practice medicine and by the Board of Medical Licensure and Discipline. The work performed by a respiratory care practitioner ~~includes, but is not limited to:~~ includes:

(1) Collecting samples of blood, secretions, gases, and body fluids for respiratory ~~evaluations;~~ evaluations.

(2) Measuring cardiorespiratory volumes, flows, and ~~pressures;~~ pressures.

(3) Administering pharmacological agents, aerosols, and medical gases via the respiratory ~~route;~~ route.

(4) Inserting and maintaining airways, natural or artificial, for the flow of respiratory ~~gases;~~ gases.

- 22 (5) Controlling the environment and ventilatory support systems such as hyperbaric chambers and
23 ~~ventilators;~~ ventilators.
- 24 (6) Resuscitating individuals with cardiorespiratory ~~failure;~~ failure.
- 25 (7) Maintaining bronchopulmonary ~~hygiene;~~ hygiene.
- 26 (8) Researching and developing protocols in respiratory ~~disorders;~~ disorders.
- 27 (9) Performing pulmonary function ~~studies;~~ and studies.
- 28 (10) The use of telemedicine as defined in this chapter and, as further described in regulation, the use of
29 and participation in telehealth.
- 30 (11) All forms of extracorporeal life support, including extracorporeal membrane oxygenation (ECMO)
31 and extracorporeal carbon dioxide removal (ECCO2R).

SYNOPSIS

This Act updates the Respiratory Care Advisory Council to the Board of Medical Licensure and Discipline's enabling act to allow qualified licensed respiratory therapists to perform all duties associated with extracorporeal life support. Under the current law, respiratory therapists are authorized to assist with such support but may not administer medication during the process. As a result, a therapist is required to wait for another licensed professional to do so, resulting in delays to patient care. This bill eliminates this delay in patient care and allows qualified respiratory therapists to work within the full scope of their training.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

Author: Senator Poore